BATANAI TAPUWA ZENGENI

Versus

PRIMEVAL TRADING (PRIVATE) LIMITED t/a EMINENT CARS

And

BLESSING MATIMURA

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 25 July 2025 & 5 January 2026

Application for absolution from the instance

B. Taruvinge for the plaintiff
A. Chimhofu for the 1st and 2nd defendants

DUBE-BANDA J:

[1] This is an application for absolution from the instance. This application is made in terms of r 56(6) of the High Court Rules, 2021.

[2] The trial commenced on 12 May 2025. The plaintiff testified and called a witness. At the close of the plaintiff's case, the defendants indicated their intention to apply for absolution from the instance, which they did.

[3] In his summons the plaintiff seeks the delivery of a Land Rover ("Land Rover") or, in the alternative, a refund of USD$76,000.00 or its equivalent in local currency; and that the defendants be held jointly liable for its delivery or, in the alternative, the payment. In his declaration, the plaintiff avers that on 25 February 2023, he entered into an agreement of sale with the defendants in respect of the Land Rover, at a price of USD$80,000.00, with a swap and top-up with an Audi vehicle ("Audi"). It is contended that the second defendant signed the agreement of sale on behalf of the first defendant.

[4] It is averred further that in August 2023, the second defendant informed the plaintiff that the Audi had developed a mechanical fault which required attention. It is averred that the second defendant returned the Audi to the plaintiff and forcibly repossessed the Land Rover, promising to return it once the Audi was repaired. It is contended that the Audi has been repaired, and the defendants were advised; however, they have refused to return the

Land Rover to the plaintiff. It is on these facts that the plaintiff sought the relief stated above.

[5] In the plea, the defendants aver that the second defendant cannot be sued in his personal capacity for the alleged wrongs of the first defendant ("company") unless the corporate veil has first been pierced. It is further averred that the plaintiff did not enter into an agreement of sale with the defendants, but with a named third party. It is contended that the third party gave the first defendant the mandate to sell the vehicle as an agent. It is further averred that the purchase price was not received by the defendants; the first defendant only received its agency commission from the third party. It is contended that the USD$80,000.00 was the monetary value of the Land Rover, and it was to be paid by an exchange with the other two vehicles, and a cash top-up. It is averred that the plaintiff and the third party had a swap and top-up agreement, in terms of which the plaintiff was given the Land Rover, and in exchange, he gave the third party a Range Rover valued at USD$55,000.00 and an Audi valued at USD$10,000.00 and paid USD$11,000.00 in cash. A balance of USD4,000.00 was to be paid to the third party in cash.

[6] It is disputed that the plaintiff made a cash payment of USD$76,000.00. It is further contended that the Range Rover was retrieved from the third party by some persons on the basis that it belonged to a certain deceased estate. In consequence thereof, the third party cancelled the agreement, returned the Audi, and repossessed the Land Rover from the plaintiff. The defendants deny that they dispossessed the plaintiff of the Land Rover, and that it is in their possession. In fact, the defendants contend that the plaintiff has sued a summons seeking a refund of the USD$11,000.00 he paid the third party in cash. The defendants seek that the plaintiff's case be dismissed with costs on a legal practitioner and client scale.

[7] In his replication, the plaintiff denies knowledge of the third party and contends that the second defendant was the owner of the Land Rover. The plaintiff contends further that he entered into an agreement with the defendants, and it is disputed that the defendants were the agents of a third party. The plaintiff insists that he swapped the Land Rover with the Audi, paid a cash deposit of USD$76,000.00, leaving a balance of USD$4,000.00.

[8] At a further pre-trial conference held before a judge in terms of r 49(5) of the High Court Rules, 2021, the following were identified as the issues for trial:

a) Whether or not plaintiff pleaded a competent claim recognized by law.

b) Whether or not the second defendant is properly cited in the proceedings in his personal capacity.
c) Whether or not plaintiff entered into an agreement with the first defendant for the sale of the Range Rover vehicle registration number AGA4472.
d) Whether or not plaintiff paid USD$76,000.00 to the first defendant.

[9] In terms of the pre-trial conference minute, the *onus* on issues (a) and (b) is on the defendants, and on issues (c) and (d) on the plaintiff. Although the issue of the duty to begin was not canvassed at the pre-trial conference before a judge, as it is the plaintiff who bears the *onus* of proof of some on the issues, he therefore has the duty to begin.

[10] The principles to be applied at the absolution stage are trite. The test to apply in considering an application for absolution is not that the evidence led by the plaintiff established a case that would be sustained if the case were to proceed to its conclusion. The essential inquiry in determining whether to grant absolution from the instance is whether there is evidence upon which a court, when applying its mind reasonably, could or might find for the plaintiff. In other words, a court would not grant absolution from the instance in a case where the plaintiff has, at the end of his or her case, presented an answerable case or *prima facie* case. Thus, the threshold required by the law, which the plaintiff has to satisfy in opposing an application for absolution from the instance at the close of his or her case, is very low. See *Gordon Lloyd Page & Associates* v *Rivera and Another* 2001 (1) (SCA) at 92E-93A; *Claude Neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403 (A) at 409G-H.

[11] To refuse absolution, this court must be satisfied that the evidence establishes a *prima facie* case. If a *prima facie* case is not met, then absolution may be granted in respect of the plaintiff's claim. See *Marine & Trade Insurance Co Ltd* v *Van der Schyff* 1972 (1) SA 26 (A) at 37G.

[12] Absolution is not granted lightly. A defendant ought not to evade the witness box by exploiting the procedure for absolution. However, this principle ought to yield when absolution serves the interests of justice. Put differently, if the requirements for absolution are met, then absolution ought to be granted. It would not be in the interest of justice for the defendant to be made to answer a deficient or non-existent case. This procedure allows bad cases to be weeded out, thus protecting scarce judicial resources from being spent on cases that do not merit further judicial attention. In this way, absolution serves the interests of justice and promotes the more efficient and effective administration of justice.

[13] It is on the prism of the above legal principles that I now turn to look at the plaintiff's evidence, to ascertain whether the plaintiff has established a *prima facie* case.

[14] The plaintiff's evidence is that on 25 February 2023, he entered into an agreement with the second defendant for the purchase of the Land Rover. The purchase price was USD80,000.00, of which he paid USD$76,000.00 in cash leaving a balance of USD$4,000.00. In addition, he testified that he gave the second respondent the Audi; thereafter, he took delivery of the Land Rover. The plaintiff testified that in August 2023, the second defendant informed him that the Audi had developed mechanical problems. He proceeded to the defendants' business premises, wherein the second defendant forcibly dispossessed him of the Land Rover.

[15] The plaintiff produced an agreement of sale in respect of the Land Rover, in which the first defendant is recorded as the seller and the plaintiff the buyer. Under terms and conditions, it is recorded that it is a swap and top-up with the Audi; and that the purchase price is USD$80,000.00 and a deposit of USD$76,000.00 was paid in cash, with the balance of USD$4,000.00 outstanding. The agreement also states that the second defendant is the seller and the plaintiff the buyer. In addition, the plaintiff produced the registration book of the Land Rover in the name of the second defendant. He also produced a C.R. 14 for the company, which states that the second defendant is one of the directors. Further, he produced a certificate of incorporation for the company and Form C.R. 2, which shows that the second defendant has 150 ordinary shares in the company. In addition, the plaintiff testified that the third party referred to by the defendants was not a party to the agreement and he persisted with his claim.

[16] The plaintiff called the evidence of Cloud Ranganai ("Ranganai"). In summary, his evidence is that he was the one who helped the plaintiff locate the second defendant and the business premises. The second defendant is said to have confirmed that he was the owner of the Land Rover, and that if the plaintiff was offering the Audi, he could sell him the Land Rover for USD$80,000.00. It was agreed that the plaintiff would give the Audi and pay USD$76,000.00 cash and leave a balance of USD$4,000.00. This witness testified that he witnessed the counting of cash in the sum of USD$76,000.00 and it being paid to the second defendant. The second defendant is said to have informed the plaintiff that the registration book will be collected after payment of the balance. The plaintiff took delivery of the Land Rover.

[17] For the purposes of the determination of absolution from the instance, it is not necessary at this stage to determine whether the plaintiff has proved its case on a balance of probabilities. The question is whether the plaintiff has established a *prima facie* case; if he has, absolution cannot be granted. This is trite. In *casu*, there is evidence that the plaintiff entered into an agreement of sale with the defendants for the sale of the Land Rover, and that he paid a cash deposit of USD$76,000.00, remaining with a balance of USD$4,000.00, and delivered his Audi as part of the agreement. There is evidence that the defendants dispossessed the plaintiff of the Land Rover. In addition, there is documentary evidence in the form of the agreement of sale, *etc*. How this court can be expected to ignore the plaintiff's evidence and grant absolution from the instance is difficult to comprehend.

[18] This is not a case for absolution from the instance. The defendant's written submissions betray a misapprehension or misunderstanding of the test applicable at this stage of the proceedings. It is basic and elementary that at this stage, the defendant's version is not before the court. The court has one version, that of the plaintiff. Therefore, the court will not concern itself with issues of credibility, except in cases where the evidence tendered by the plaintiff is so poor or so improbable to the extent that no court would place any reliance upon it. Furthermore, where the plaintiff's evidence gives rise to more than one plausible inference, any one of which is in his or her favour in the sense of supporting his or her cause of action and is destructive of the version of the defence, absolution is an inappropriate remedy. In addition, issues of law generally cannot be resolved at this stage of the proceedings. They can be determined and resolved at the end of the trial, when the court has all the evidential material before it.

[19] In *Beta Holdings* v *Rio Zim (Pvt) Ltd HH* 397/17, the court had this to say regarding the granting of an order for absolution from the instance: "…. the order should be granted when the plaintiff's claim is hopeless at the close of the plaintiff's case." By any standard, the plaintiff's claim cannot be said to be hopeless. I am satisfied that, on the evidence summarised above, the plaintiff has established a *prima facie* case that calls for an answer. It must be recalled that absolution from the instance, the authorities say, should not be lightly granted if there is evidence supporting the claim. In my considered view, such evidence has been presented by the plaintiff, and which evidence requires an answer from the defendants. In the circumstances, the application for absolution from the instance cannot succeed.

[20] In addition, and on another score, this is not a matter for absolution from the instance. This is so because according to the pre-trial conference minute, the *onus* on (a) and (b) are on the defendants. When one speaks of the need to discharge an *onus*, it immediately becomes clear that there is an evidentiary burden that must be met. See *Broker v Mudhanda & Anor; Pearce v Mudhanda & Anor* 2018 (1) ZLR 33 (S). The view I take is that a defendant who bears an *onus* in respect of any issue in the trial, cannot seek to be absolved at the close of the plaintiff's case. It is so because such a defendant must adduce evidence to discharge the *onus* on him or her, and such evidence can only be adduced in the defendant's case. My humble view is that it would be ill advised and incompetent for a defendant who bears an *onus* in respect of any issue to seek to be absolved at the close of the plaintiff's case.

[21] The plaintiff has been successful in these proceedings and is entitled to his costs. No good grounds exist for a departure from the general rule that costs follow the event. The plaintiff sought costs on a punitive scale. Although I am not inclined to award such punitive costs in this matter, I need to point out, though, that it is now becoming fashionable that at the close of the plaintiff's case, the defendant, without taking a step back and pausing to consider the evidence and the applicable legal principles, just blindly applies for absolution from the instance. The last thing that our already congested court rolls require is further congestion by an unwarranted proliferation of litigation. This is one case where an application from the instance should not have been made. Refined thinking is required before such an application is made. In future, such thoughtless applications for absolution might warrant costs on a punitive scale.

[22] In the result, I make the following order:

i. The application for absolution from the instance is dismissed.
ii. The defendants are ordered to pay the plaintiff's costs relating to the application for absolution from the instance, jointly and severally, each paying the other to be absolved.
iii. The Registrar is directed to set down this matter for continuation of the trial.

DUBE – BANDA J: …….

Tafirei and Company, plaintiff's legal practitioners
Rusinahama-Rabvukwa Attorneys, defendant's legal practitioners